

Court No. - 40

Case :- WRIT - C No. - 17164 of 2025

Petitioner :- Harishchandra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Santosh Kumar Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

This is a writ petition under Article 226 of the Constitution of India wherein the petitioner has sought to challenge the order dated April 17, 2025, issued by the respondent No. 3, the Superintending Engineer, Purvanchal Vidyut Vitran Nigam Limited, Hydril Colony, District Fatehpur. Also, the writ petitioner seeks a direction to the respondents to disconnect the electricity connection of the respondent Nos. 5 and 6 from the L.T. Line Electricity Connection (personal cable tube-well connection) of the applicant/petitioner.

Upon hearing the counsel for parties and perusal of the impugned order, we do find from the impugned order that this matter is not amenable to the writ jurisdiction and therefore, we feel that the petitioner is required to be relegated to an alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005, whereunder, the petitioner can file an appeal.

In light of the same, the petitioner is directed to file an appeal under Clause 7.10 of the Code, within a period of two weeks from date. If such an appeal is filed, the same is directed to be decided by the concerned authority, within a period of eight weeks from the date of filing of the said appeal and after a proper opportunity

of hearing being afforded to the petitioner and other relevant persons.

With the above directions, the writ petition is **disposed of**.

Order Date :- 27.5.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Shekhar B. Saraf, J.]